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Athens, 21-5-2025

Protocol No.: 1773

DECISION 18/2025

The Hellenic Data Protection Authority (hereinafter referred to as the "Authority") convened, following an invitation from the President, in a meeting via teleconference on Tuesday, 15-04-2025, in order to examine the case referred to in the background of this document. Present were the President of the Authority, Konstantinos Menoudakos, and the regular members Konstantinos Lamprinoudakis, Charalampos Anthopoulos, Christos Kalloniatis, and Grigoris Tsolias. Also present was the alternate member Christos Papadopoulos, substituting for the regular member Spyros Vlachopoulos, who was absent despite being duly summoned in writing, as well as the alternate member Dimosthenis Vougioukas, serving as rapporteur without voting rights pursuant to Article 8 paragraph 2 of the Authority's Operating Regulation. Present, without voting rights, were Fotini Karvela and Georgia Panagopoulou, scientific experts, as assistant rapporteurs, and Irini Papageorgopoulou, an employee of the administrative affairs department, as secretary.

The Authority took into account the following:

In the context of exercising its powers to supervise the application of the provisions of the General Regulation (EU) 2016/679 for the protection of natural persons against the processing of personal data (hereinafter: GDPR), Law 4624/2019, and other regulations concerning the protection of individuals from the processing of personal data, the Authority initiated, in accordance with the provisions of Articles 57 paragraph 1(a), 58 paragraph 1(b) of the GDPR and 13 paragraph 1(h) and 15 paragraph 1 of Law 4624/2019, a procedure for ex officio inspection of the companies Hangzhou DeepSeek Artificial Intelligence Co., Ltd. and Beijing DeepSeek Artificial Intelligence Co., Ltd. regarding the Artificial Intelligence (hereinafter: AI) services of the DeepSeek platform that the aforementioned companies provide both online and through a related application (web- and app-based) to data subjects located in Europe and specifically in Greece.

In the context of exercising the aforementioned inspection, the Authority addressed to the companies Hangzhou DeepSeek Artificial Intelligence Co., Ltd. and Beijing DeepSeek Artificial Intelligence Co., Ltd. the document with protocol number G/EXE/2025/493, in which it posed a series of questions.

In detail, the Authority reminded the inspected data controllers that they fall within the scope of the GDPR according to Article 3 paragraph 2(a) thereof, because although they are not established in the European Union (hereinafter: EU), but in China, the processing activities they carry out relate to the offering of services to data subjects located in EU countries, including Greece, regardless of whether payment is required from the subjects, and therefore, they are obliged to appoint a representative in writing in the EU, who must be established in one of the member states where the data subjects, whose data are processed in relation to the provision of services to them, are located, unless one of the exceptions provided for in paragraph 2 of the said Article 27 applies.

With the same document, the Authority posed a series of questions to the data controllers, including a) how they ensure compliance with the fundamental principles of lawfulness of the processing of personal data of subjects located in Greece, in accordance with Article 5 paragraph 1 of the GDPR, b) what processing activities they are involved in regarding personal data of subjects located in Greece, c) what is, according to the...

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Article 6, paragraph 1 of the GDPR, the applicable legal basis for each activity of processing personal data (and in the case of processing special categories of data, the applicable exception under Article 9 of the GDPR) of subjects located in Greece, within the framework of the DeepSeek software infrastructure, d) how the information required by Articles 13 and 14 of the GDPR is provided to the subjects, e) how the satisfaction of the rights of data subjects, as per Articles 15-22 of the GDPR, is

ensured, f) where the data centers are located that are used for hosting and providing the DeepSeek software infrastructure.

From the document with reference number G/EIS/2025/1603, in which Hangzhou DeepSeek Artificial Intelligence Co., Ltd responded to the Authority's questionnaire, as well as from the applicable privacy policy of the DeepSeek platform, it emerged that the AI services of the DeepSeek platform are now provided solely by the aforementioned company. In the above document, Hangzhou DeepSeek Artificial Intelligence Co., Ltd stated the following: a) The services it provides through the DeepSeek platform are based on open-source software, intending to allow developers and AI enthusiasts worldwide to benefit from advanced AI technology, rather than offering products and services to users in any specific country. Based on this reasoning, it considers that it does not fall within the scope of the GDPR and for this reason has not appointed a representative within the EU at this stage. However, in the same document, it stated that it is willing to accept the advice and guidance of the Authority regarding any obligation to appoint a representative in the EU as well as specific recommendations for such an appointment. b) As a newly established Chinese AI company, DeepSeek currently has no establishment in the EEA. c) DeepSeek places great emphasis on data protection in all its business processes and ensures effective compliance with the principles of personal data processing by implementing a series of compliance measures, internal policies, and technical safeguards. d) It mentions the principles of the GDPR, but without using the definitions and specific articles of the GDPR. For example, it uses the term Personal Information Protection Impact Assessment (PIPIA) instead of DPIA, which comes from China's Personal Information Protection Law (PIPL). e) It responds regarding the applicable legal bases for processing without referring to specific articles of the GDPR. f) Regarding the rights of data subjects, it mentions the provisions of the GDPR. g) It mentions security measures, but does not link them to the GDPR, e.g., it does not mention the obligation to report security incidents. h) DeepSeek is currently establishing its own data centers in China to host and provide the DeepSeek software infrastructure.

From the study of the applicable privacy policy of the DeepSeek platform, the following points were summarized: a) The GDPR is not mentioned, b) There is no mention of a representative in the EU or any existence of an establishment in the EU, c) The policy is not formulated in Greek, d) Although it provides relevant information, the wording and detail are less clear, which may affect users' understanding, e) It is stated that data is stored in China, without mentioning the provision of additional legal guarantees, f) Rights and legal bases are mentioned, but are not anchored in the relevant provisions of the GDPR. The responsible processor is stated as Hangzhou DeepSeek Artificial Intelligence Co.

Subsequently, the Authority proceeded to examine the elements of the file, and after hearing the rapporteur and the clarifications from the assistant rapporteurs, and following a thorough discussion,

CONSIDERED ACCORDING TO THE LAW

1. From the provisions of Articles 51 and 55 of the GDPR and Article 9 of Law 4624/2019 (Government Gazette A' 137/2019), it emerges that the Authority has jurisdiction.

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to supervise the implementation of the provisions of the GDPR, Law 4624/2019, and other regulations concerning the protection of individuals from the processing of personal data.

2. According to the provision of Article 3(2)(a) of the GDPR, "this regulation applies to the processing of personal data of data subjects who are in the Union by a controller or processor not established in the Union, if the processing activities are related to: (a) the offering of goods or services to such data subjects in the Union, regardless of whether payment is required from the data subjects."

In this regard, Recital 23 of the GDPR provides, concerning the applicability of a processing operation within the territorial scope of the GDPR, based on the targeting criterion set out in Article 3(2)(a), that "to determine whether such a controller or processor (i.e., established outside the EU) offers goods or services to data subjects who are in the Union, it must be established whether the controller or processor clearly intends to provide services to data subjects in one or more Member States of the

Union. While mere accessibility of the controller's website, the processor's website, or an intermediary in the Union, or the email address and other contact details, or the use of a language commonly used in the third country where the controller is established is not sufficient to substantiate such intent, factors such as the use of a language or currency commonly used in one or more Member States, the possibility to order products and services in that other language, or the reference to customers or users located in the Union may make it evident that the controller intends to offer goods or services to data subjects in the Union."

The Guidelines 3/2018 of the EDPB regarding the territorial scope of the GDPR clarify that "in relation to processing activities concerning the offering of services, the provision [of Article 3(2)(a) of the GDPR] aims at activities that intentionally target, and not incidentally or accidentally, individuals located in the EU."

3. According to Article 55(1) of the GDPR, "each supervisory authority shall be competent to perform the tasks and exercise the powers conferred on it in accordance with this regulation in the territory of its Member State."

Article 56(1) of the GDPR states that "subject to Article 55, the supervisory authority of the main or sole establishment of the controller or processor shall be competent to act as the lead supervisory authority for cross-border processing by that controller or processor in accordance with the procedure laid down in Article 60."

The cooperation mechanism of the GDPR (Article 60 et seq. GDPR) applies only in the case of a controller or processor with one or more establishments in the EU. Similarly, Recital 122 of the GDPR provides that "Each supervisory authority should be competent, in the territory of the Member State to which it is subject, to exercise the powers and perform the tasks conferred on it in accordance with this regulation. This should cover, in particular, the processing (...) carried out by a controller or processor not established in the Union, when it targets data subjects residing in its territory."

Therefore, in the case of a controller without an establishment in the EU, who falls within the scope of the GDPR based on the targeting criterion set out in the provision of Article 3(2) of the GDPR, each national supervisory authority is competent to monitor compliance with the GDPR by that controller in the territory of its Member State.

3 See EDPB Guidelines on the designation of the lead authority of the controller or processor, WP 244, file:///C:/Users/Sony/Downloads/wp244_rev_01_en_D8F5C63C-0B05-0150-00FADAD64B767E4E_44102%20(1).pdf

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4. In cases where Article 3(2) of the GDPR applies, Article 27 of the GDPR provides that the data controller is obliged to designate a representative in the EU in writing, who must be established in one of the member states where the data subjects, whose data are processed in relation to the offering of goods or services to them or whose behavior is monitored, are located, unless one of the exceptions provided for in paragraph 2 of that Article 27 applies. The representative, as clarified in Recital 80, must act on behalf of the data controller, and any supervisory authority may address them. The representative is appointed by a written mandate from the data controller to act on their behalf regarding their obligations under the GDPR. The Guidelines 3/2018 of the EDPB on the territorial scope of the GDPR state that this primarily involves obligations concerning the exercise of the rights of data subjects, and in this context, the provision of the identity and contact details of the representative to the data subjects in accordance with the provisions of Articles 13 and 14 of the GDPR. Although the representative is not responsible for compliance with the rights of data subjects, they must facilitate communication between the data subjects and the represented data controller to ensure the effective exercise of the rights of the subjects. As clarified in Recital 80, the representative must also be subject to enforcement procedures in case of non-compliance by the data controller. This means in practice that the possibility for a supervisory authority to communicate with the representative regarding any issue related to the compliance obligations of a data controller established outside the EU must be ensured, and the representative must be able to facilitate any exchange of information or procedures between the requesting supervisory authority and the data controller or processor established outside the EU.

5. In the case at hand, regarding the correlation of DeepSeek's processing activities with the offering of services to data subjects located in the EU, a critical issue is whether the processing activities indeed concern services that are intentionally offered and not inadvertently and incidentally to subjects located in the EU and, in this case, in Greece. The services offered by DeepSeek undoubtedly target and aim at subjects located in the EU, given that DeepSeek's behavior, as the data controller determining the means and purposes of processing, makes its intention to offer services to subjects located in the EU, and specifically in Greece, evident, as it is accessible both via the internet and through mobile applications to subjects located in Greece. Additionally, the applications are available in the Greek language.

6. The company Hangzhou DeepSeek Artificial Intelligence Co., Ltd., which provides AI services through the DeepSeek platform, is based in China and has no establishment in the EU. Therefore, in the case of the aforementioned company, which does not have an establishment in the EU but falls within the scope of the GDPR based on the targeting criterion set out in Article 3(2) of the GDPR, any national supervisory authority is competent to monitor its compliance with the GDPR within the territory of its member state, as previously stated in Recital 3.

7. Following the above, from the evidence in the file, the Authority finds that the company Hangzhou DeepSeek Artificial Intelligence Co., Ltd. has violated the obligation to designate a representative in the EU (Article 27 GDPR), because, although it does not have an establishment in the EU, it falls within the scope of the GDPR based on Article 3(2)(b), and therefore is obliged to designate a representative in the EU in accordance with Article 27 of the GDPR, it has not fulfilled this obligation.

8. Based on the above, the Authority unanimously considers that there is a case to exercise its corrective powers under Article 58(2) of the GDPR concerning the identified violation and specifically that, based on the circumstances identified, it must, pursuant to the provision of Article 58(2)(d) of the GDPR, order the company Hangzhou DeepSeek Artificial Intelligence Co., Ltd. to designate a representative in the EU in writing, as required by Article 27 of the GDPR, because, although it is based in China, it falls within the scope of the GDPR, according to Article 3(1)(a) thereof, as analyzed above.

FOR THESE REASONS

THE AUTHORITY

Addresses the company Hangzhou DeepSeek Artificial Intelligence Co., as the data controller, which provides AI services through the DeepSeek platform, with a directive, based on Article 58(2)(d) of the GDPR, to designate a representative in the EU in writing, in accordance with the provision of Article 27 of the GDPR, and to inform the Authority accordingly.

The President

The Secretary

Konstantinos Menoudakos

Irini Papageorgopoulou